

Court No. - 38

Case :- WRIT - C No. - 31970 of 2018

Petitioner :- M/S Chaudhary Bhoop Singh Cold Storage (P) Ltd.

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Gulrez Khan, Javed Husain Khan, Sri W.H. Khan
(Sr. Advocate)

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Abhinava Upadhyaya, J.

Hon'ble Rajiv Gupta, J.

Heard Shri Wajahat Husain Khan, learned Senior Advocate assisted by Shri Ramanuj Pandey, appearing for the petitioner.

Put up on Tuesday, i.e. on 25.9.2018, as fresh upon request of Shri Nripendra Mishra, learned counsel for the respondents, to enable him to seek instruction.

Order Date :- 20.9.2018

Sunil Kr. Gupta

(Rajiv Gupta, J.) (Abhinava Upadhyaya, J.)

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(Sr. Advocate)

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Abhinava Upadhyaya, J.

Hon'ble Rajiv Gupta, J.

As prayed, put up tomorrow as fresh.

Order Date :- 25.9.2018

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(Rajiv Gupta, J.)

(Abhinava Upadhyaya, J.)

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Counsel for Petitioner :- Gulrez Khan, Javed Husain Khan, Sri W.H. Khan (Sr. Advocate)

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi, Nripendra Mishra

Hon'ble Abhinava Upadhyaya, J.

Hon'ble Rajiv Gupta, J.

By means of this writ petition, the petitioner has challenged the recovery citation dated 14.8.2018, by which a demand has been made for a sum of Rs. 39,84,513/- plus other charges. The said amount sought to be recovered is arrears of electricity dues, which is alleged to be charges for unauthorized use of electricity.

The main contention to assail the recovery citation is that the provisional assessment has been made without considering reply of the petitioner as well as without affording an opportunity of personal hearing which is required under Clause 6.8 (b) (c) of the Electricity Supply Code, 2005.

Sri Nipendra Mishra, learned counsel appearing for the Electricity Department was required to seek instructions and upon instructions, he has moved various documents indicating that provisional assessment was made. The petitioner was given an opportunity of hearing. The petitioner never appeared and thereafter final assessment has been made strictly in accordance with procedure prescribed and complying the formula as provided under

Annexure 6.3 of the Electricity Supply Code, 2005 and there is no illegality and the petitioner has a remedy of filing an appeal.

Sri Wajahat Hussain, Senior Advocate, appearing for the petitioner has drawn our attention towards decision of this Court in the case of **Ram Bahadur Vs. State of U.P. & others, reported in 2016 (11) ADJ 463**, wherein the Court has taken a categorical view that without compliance of the procedure of Section 6.3 and without affording an opportunity of hearing, no provisional assessment and final assessment could be made.

On the other hand, Sri Nipendra Mishra, learned counsel for the Electricity Department has also relied upon a decision of this Court in the case of **Kapil Gupta Vs. U.P. Power Corporation Ltd. & another** passed in Writ Petition No. 31023 of 2014, wherein it has been held that against the final assessment, the petitioner has a remedy by filing an appeal under Section 127 of the Electricity Act.

We have considered the submissions of learned counsel for the parties.

From the records available before us, it does appear that assessment order has been passed without affording any opportunity of hearing to the petitioner as none of the documents supplied by Sri Nipendra Mishra indicates that there was ever any date fixed for personal hearing.

The matter requires consideration.

Let counter affidavit be filed for which Sri Nipendra Mishra, learned counsel for the Electricity Department is

allowed three weeks' time. Rejoinder affidavit may be filed within two weeks thereafter.

List after the expiry of the aforesaid period.

Till the next date of listing, no coercive action shall be taken against the petitioner pursuant to recovery citation dated 14.8.2018 provided the petitioner deposits half of the amount demanded and for the other remaining, the petitioner will furnish security to the satisfaction of the authority concerned other than cash or adequate guarantee.

The aforesaid deposit shall be subject to the final result of the writ petition.

Order Date :- 26.9.2018

KU

(Rajiv Gupta,J.) (Abhinava Upadhya,J.)

Court No. - 39

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Counsel for Petitioner :- Gulrez Khan, ,Javed Husain Khan,Sri W.H. Khan (Sr. Advocate),W.H. Khan

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi,Nripendra Mishra

Hon'ble B. Amit Sthalekar,J.

Hon'ble Rajiv Joshi,J.

List after two weeks.

Interim order, granted earlier, is extended till the next date of listing.

Order Date :- 2.11.2018

o.k.

Court No. - 21

Case :- WRIT - C No. - 31970 of 2018

Petitioner :- M/S Chaudhary Bhoop Singh Cold Storage (P) Ltd.

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Gulrez Khan, ,Javed Husain Khan,Sri W.H. Khan
(Sr. Advocate),W.H. Khan

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi,Nripendra Mishra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

As prayed, two weeks time is granted to file rejoinder affidavit.

List on 24.4.2023.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 24.3.2023

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Court No. - 21

Case :- WRIT - C No. - 31970 of 2018

Petitioner :- M/S Chaudhary Bhoop Singh Cold Storage (P) Ltd.

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Gulrez Khan, ,Javed Husain Khan,Sri W.H. Khan (Sr. Advocate),W.H. Khan

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi,Nripendra Mishra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

None appears for the petitioner to press the petition even in revised call.

Writ petition is dismissed for want of prosecution.

The order has been passed in the presence of Sri Ashutosh Dwivedi, Advocate holding brief of Sri Baleshwar Chaturvedi, learned counsel for the respondent Corporation.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 8.5.2023

Jaswant